

25STCV25429 25STCV25429

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Case Number: 25STCV25429 Hearing Date: August 21, 2026 Dept: 617

DEMURRER

MOVING PARTY: Defendant, Chubb National Insurance Company

RESPONDING PARTY: Plaintiff, Mahin Hakak

RELIEF REQUESTED

Demurrer to Complaint

SUMMARY OF ACTION

Plaintiff Mahin Hakak alleges that Defendant Chubb National Insurance Company (Chubb) failed to fully compensate her under her insurance policy for damages suffered after her home was flooded. She further alleges that Chubb hired Defendant D&A Endeavors, Inc. dba ServPro to make repairs but ServPro abandoned the project and caused further damage. On October 17, 2025, Plaintiff substituted in Federal Insurance Company for Doe 1. Plaintiff asserts claims for: (1) Breach of Insurance Contract; (2) Breach of Covenant of Good Faith and Fair Dealing; (3) Negligence; (4) Negligent Undertaking; (5) Breach of Contract; (6) Conversion; (7) Financial Elder Abuse; and (8) Intentional Infliction of Emotional Distress.

RULING: Sustained.

Request for Judicial Notice: Granted.

The Court takes judicial notice of the existence of the complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.)

Defendant Chubb demurs to Plaintiff's complaint, arguing that Plaintiff fails to state a claim against it because the insurance policy attached to the complaint identifies Federal Insurance Company as the insurer. Plaintiff opposes the demurrer, contending that Chubb is properly named as a party under the doctrine of ostensible agency. Although the opposition was filed 2-court days late, the Court finds no prejudice to Chubb and therefore considers the opposition in ruling on the demurrer. (Code Civ. Proc., § 1005, subd. (b).) Chubb's demurrer is nonetheless sustained with leave to amend.

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these

standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Plaintiff attached her insurance policy to the complaint, which reveals on the first page that it was issued by Federal Insurance Company. [Compl. ¶ 9, Ex. 1.] This is given precedence over Plaintiff's contrary allegations that Chubb issued the policy. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627 ["[F]acts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence"].) The complaint therefore establishes that Federal Insurance Company, not Chubb, was Plaintiff's insurer and thus Chubb owed no duties to her.

Plaintiff cannot rely on an ostensible agent or alter ego theory to seek recovery against Chubb. The ostensible agent theory is misplaced because an agent's ostensible authority is used to recover against the principal, not a purported agent like Chubb. (*Kaplan v. Coldwell Banker Residential Affiliates, Inc.* (1997) 59 Cal.App.4th 741, 747.) Plaintiff's alter ego theory is unavailing because she does not allege the requisite facts to establish alter ego liability. (*Tran v. Farmers Group, Inc.* (2002) 104 Cal.App.4th 1202, 1219.) She only alleges that "each Defendant, including DOES, was and is the . . . alter ego . . . of each other Defendants." [Compl. ¶ 8.] Still, because there is a reasonable possibility that Plaintiff can amend her complaint to allege an alter ego, single enterprise, or other theory of liability, she is granted leave to amend.

Plaintiff is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Chubb may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Chubb to give notice.